

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine White	Team: Squad #13	CCRB Case #: 202207074	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 10/18/2022 7:49 PM, Tuesday, 10/18/2022 8:05 PM	Location of Incident: 42 Claver Place; inside an NYPD vehicle, and the PSA 3 stationhouse	18 Mo. SOL 4/18/2024	Precinct: 79
Date/Time CV Reported Thu, 10/20/2022 12:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 10/20/2022 12:26 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Mohammad Abdelfattah	00603	965915	PSA 3
2. PO Krishawni Denton	11187	967479	PSA 3
3. PO Steven Guerrero	12693	966089	PSA 3
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Keith Meisner	07069	963647	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A. PO Steven Guerrero	Force: At 42 Claver Place in Brooklyn, Police Officer Steven Guerrero used physical force against § 87(2)(b)	
B. PO Mohammad Abdelfattah	Force: At 42 Claver Place in Brooklyn, Police Officer Mohammad Abdelfattah used physical force against § 87(2)(b)	
C. PO Krishawni Denton	Force: At 42 Claver Place in Brooklyn, Police Officer Krishawni Denton used physical force against § 87(2)(b)	
D. PO Krishawni Denton	Abuse: At 42 Claver Place in Brooklyn, Police Officer Krishawni Denton threatened § 87(2)(b) with the use of force.	
E. PO Mohammad Abdelfattah	Force: At 42 Claver Place in Brooklyn, Police Officer Mohammad Abdelfattah struck § 87(2)(b) with a flashlight.	
F. An officer	Force: At 42 Claver Place in Brooklyn, an officer hit § 87(2)(b) against the ground.	
G. PO Steven Guerrero	Discourtesy: At 42 Claver Place in Brooklyn, Police Officer Steven Guerrero spoke discourteously to § 87(2)(b)	
H. PO Krishawni Denton	Abuse: At 42 Claver Place in Brooklyn, Police Officer Krishawni Denton refused to provide his shield number to an individual.	
I. PO Steven Guerrero	Abuse: At 42 Claver Place in Brooklyn, Police Officer Steven Guerrero refused to provide his shield number to an individual.	
J. PO Mohammad Abdelfattah	Force: At the PSA 3 stationhouse, Police Officer Mohammad Abdelfattah used physical force against § 87(2)(b)	

Case Summary

On October 20, 2022, § 87(2)(b) reported the following complaint to the CCRB via the website (BR01).

On October 18, 2022, at approximately 7:49 p.m., Police Officers Krishawni Denton, Steven Guerrero, and Mohammad Abdelfattah of Police Service Area (PSA) 3 pulled § 87(2)(b) over at 42 Claver Place in Brooklyn. PO Guerrero, PO Abdelfattah, and PO Denton all pulled on § 87(2)(b)'s arms to remove them from his pockets and grappled with him to place him in custody (Allegations A, B, C: Force - Physical Force, § 87(2)(g)). Inside § 87(2)(b)'s vehicle, PO Guerrero punched § 87(2)(b) in the head (within Allegation A). PO Denton said, "Yo, I'm gonna Tase you" to § 87(2)(b) and deployed a Taser warning arc (Allegation D: Abuse of Authority – Threat of Force, § 87(2)(g)). PO Abdelfattah hit § 87(2)(b)'s leg with a flashlight (Allegation E: Force, Flashlight as Club, § 87(2)(g)). Outside § 87(2)(b)'s vehicle, PO Guerrero punched § 87(2)(b) in the head and shoulders multiple times on the ground (within Allegation A). PO Abdelfattah punched § 87(2)(b) on the back twice (within Allegation B). An officer allegedly slammed § 87(2)(b)'s head against the ground (Allegation F: Force - Hit Against Inanimate Object, § 87(2)(g)). PO Guerrero said, "Yo, what the fuck you doing?" and, "I was trying to put your hands down but you started fucking swinging at us" (Allegation G: Discourtesy – Word, § 87(2)(g)). PO Denton and PO Guerrero allegedly did not provide an unidentified civilian bystander with their shield numbers (Allegations H and I, Abuse of Authority – Refusal to Provide Shield Number, § 87(2)(g)).

At the PSA 3 stationhouse, PO Abdelfattah pushed § 87(2)(b) into the cell area (Allegation J: Force – Physical Force, § 87(2)(g)).

The investigation obtained body-worn camera (BWC) videos from PO Denton, PO Guerrero, and PO Abdelfattah (BR02-05, summarized at BR06). The investigation also obtained VMVS (vehicle-mounted video system) dash camera and interior camera videos (BR07-08, summarized at BR06).

§ 87(2)(b) was arrested and charged § 87(2)(a) 160.50

Findings and Recommendations

Allegation (A) Force: At 42 Claver Place in Brooklyn, Police Officer Steven Guerrero used physical force against § 87(2)(b)

Allegation (B) Force: At 42 Claver Place in Brooklyn, Police Officer Mohammad Abdelfattah used physical force against § 87(2)(b)

Allegation (C) Force: At 42 Claver Place in Brooklyn, Police Officer Krishawni Denton used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: At 42 Claver Place in Brooklyn, Police Officer Krishawni Denton threatened § 87(2)(b) with the use of force.

Allegation (E) Force: At 42 Claver Place in Brooklyn, Police Officer Mohammad Abdelfattah struck § 87(2)(b) with a flashlight.

Allegation (F) Force: At 42 Claver Place in Brooklyn, an officer hit § 87(2)(b) against the ground.

§ 87(2)(b) testified (BR10) that the officers ordered him to stop driving over the loudspeaker, and

he stopped the car. PO Guerrero and PO Denton approached, and § 87(2)(b) opened his door. PO Guerrero ordered § 87(2)(b) to provide ID; he refused. PO Guerrero ordered § 87(2)(b) to exit the vehicle, take his hands out of his pockets, and put them behind his back. § 87(2)(b) said he had to use the restroom, exited the vehicle, then re-entered his vehicle and refused to exit. § 87(2)(b) reached for his phone, which was mounted on the dashboard. PO Guerrero grabbed § 87(2)(b)'s shirt, § 87(2)(b) punched PO Guerrero in the face, and PO Guerrero released his grip. Three officers pulled his shirt and grabbed, twisted, and pulled his left arm to remove him from the vehicle. Once § 87(2)(b) was out of the vehicle, three officers tackled him to the ground. At an unknown point, possibly while § 87(2)(b) was going to the ground, an officer kicked him. § 87(2)(b) could not identify when he was kicked or what part of his body was kicked. § 87(2)(b)'s head hit the ground when the officers tackled him. An officer also placed his hand against the back of § 87(2)(b)'s head and slammed it against the ground twice. § 87(2)(b) became dizzy and fell unconscious for about thirty seconds, and he was confused and disoriented for a few minutes after. He stopped feeling confused and disoriented when he was in the NYPD vehicle. The officers tried to handcuff him, and he pulled his hands away from the officers and pushed them. PO Guerrero and a heavysset Black male officer pulled and twisted § 87(2)(b)'s left hand. PO Guerrero, PO Denton, and the heavysset Black male officer all punched § 87(2)(b) three to four times on the upper-left side of his face. An officer hit § 87(2)(b)'s head against the ground again. § 87(2)(b) stopped resisting and put his hands behind his back to be cuffed.

The following footage is discussed in chronological order for clarity:

VMVS dash camera video (**BR07**) at 00:55 captures § 87(2)(b) beginning to parallel park. At 01:05, PO Guerrero tells § 87(2)(b) to put the car in park and lower his windows. § 87(2)(b) continues parking. PO Guerrero tells § 87(2)(b) twice more to put the car in park, then tells him to lower his windows. § 87(2)(b) continues parking while watching the officers. At 01:17, § 87(2)(b) opens his driver's door. PO Denton approaches the vehicle. PO Denton's BWC video (**BR02**) at 01:09 captures § 87(2)(b) as he opens his door. PO Denton says, "Boss, you don't hear us?" § 87(2)(b) says no. PO Denton tells § 87(2)(b) to put the car in park and roll his windows down. § 87(2)(b) says that he cannot roll the windows down. At 01:17, PO Denton asks to see § 87(2)(b)'s hands. VMVS dash camera video (**BR07**) at 01:26 captures PO Guerrero approaching the vehicle at this point. PO Abdelfattah tells § 87(2)(b) twice to put the car in park. § 87(2)(b) tries to shut the front door, but PO Guerrero hits the door and opens it to prevent it from closing. PO Guerrero's BWC video (**BR03**) at 01:07 captures § 87(2)(b) at this point. § 87(2)(b) picks up his cell phone with his right hand. PO Guerrero requests § 87(2)(b)'s license and registration. PO Denton says to tell § 87(2)(b) to put the car in park, as it is still in reverse. PO Guerrero requests § 87(2)(b)'s license and registration again. At 01:19, § 87(2)(b) unbuckles his seatbelt, grabs his phone, stands up, and says, "Wait a minute, I want to pee." PO Guerrero puts his arm up and places his hand against § 87(2)(b)'s chest to stop him, saying, "Hold up, bro." PO Guerrero begins struggling with § 87(2)(b) and PO Guerrero's BWC falls off and lands under § 87(2)(b)'s car. PO Abdelfattah's first BWC video (**BR04**) at 01:35 captures PO Guerrero stopping § 87(2)(b) from walking away by placing his hand against his chest. § 87(2)(b) puts his left hand, which is holding his phone, out of sight to his left, then puts his right hand in his right pants pocket. PO Guerrero grabs § 87(2)(b)'s left forearm and presses him against the car. PO Abdelfattah grabs § 87(2)(b)'s right forearm. An officer says, "Take your hand out of your pocket." § 87(2)(b) says, "I'm not gonna take them off! You wanna kill me right now? Kill me, right now!" PO Guerrero, PO Denton, and PO Abdelfattah all frisk § 87(2)(b)'s pockets and waist. PO Denton's BWC video (**BR02**) at 01:49 captures PO Denton frisking § 87(2)(b)'s right pants pocket; PO Abdelfattah and PO Denton hold § 87(2)(b)'s right arm, whose hand is stuck inside the pocket. PO Abdelfattah's first BWC video (**BR04**) at 01:47 captures § 87(2)(b) pulling away from the officers' grip while moving frenetically, then sinking to his knees and rapidly moving into the front driver's seat face first. A loud clanking noise

emanates from the area, and then § 87(2)(b) apparently yells out in pain. PO Denton's BWC video (BR02) at 01:51 captures § 87(2)(b) spin to the left, then enter the driver's seat. He either falls or lunges into the driver's seat, pulling PO Guerrero after him, or is pushed into the driver's seat by PO Guerrero, who falls after him. PO Abdelfattah and PO Denton try to help PO Guerrero pull § 87(2)(b) out of the vehicle. PO Abdelfattah's BWC video at 02:00 (BR04) captures PO Abdelfattah grabbing and pulling § 87(2)(b)'s leg. At 02:03, PO Denton says, "Yo, I'm gonna Tase you!" PO Denton goes to the other side of the vehicle, then returns. PO Abdelfattah holds § 87(2)(b)'s leg with his left hand. PO Denton's BWC video (BR02) at 02:25 captures PO Abdelfattah holding his flashlight in his right hand, with the bulb area of the flashlight extending from his hand. He slams the flashlight against § 87(2)(b)'s shin once. At 02:28, PO Denton holds his Taser pointing at the ground and deploys a warning arc (a visible and audible arc of electricity between the front electrodes). At 02:34, PO Guerrero says, "Give me your hands." § 87(2)(b)'s hand is obscured in his pants' left pocket or inside the waistband. At 02:40, PO Guerrero and PO Abdelfattah pull § 87(2)(b) out of the vehicle to a standing position. VMVS dash camera video (BR07) at 02:48 captures the officers remove § 87(2)(b) from his vehicle, surround him, and grab his arms and body. § 87(2)(b) continues vigorously struggling against them. At 02:54, PO Abdelfattah grabs § 87(2)(b)'s right leg and lifts it into the air. § 87(2)(b) kicks and pulls his leg away. At 02:59, PO Guerrero punches § 87(2)(b) in the head and shoulders. PO Denton's BWC video (BR02) at 02:50 captures this same moment from a different angle. PO Guerrero punches § 87(2)(b) in the head and shoulders four times. § 87(2)(b) goes to the ground and continues struggling against the officers and refusing to surrender his hands. VMVS dash camera video (BR07) at 03:03 captures PO Abdelfattah punching § 87(2)(b) in the back twice. PO Abdelfattah's first BWC video (BR04) at 03:19 captures the moment officers finish handcuffing § 87(2)(b). PO Abdelfattah frisks § 87(2)(b)'s pockets, and the officers lift him to his feet. VMVS dash camera video (BR07) at 03:44 captures officers bringing § 87(2)(b) to his feet. § 87(2)(b) pulls away from the officers and walks forward towards his car while bent over. PO Guerrero and PO Abdelfattah stand behind him to his left and right, respectively, and hold him against the car. § 87(2)(b) continues struggling against the officers' grasp and repeatedly yells that he needs to pee, then lifts his left leg up to the left. PO Abdelfattah pushes § 87(2)(b)'s leg down with his own leg. At 04:17, the officers walk § 87(2)(b) back towards their NYPD vehicle. PO Denton's BWC video (BR02) at 04:54 captures him repeatedly ordering § 87(2)(b) to sit in the car's rear right passenger seat; its door is open. § 87(2)(b) does not sit, struggles with PO Denton, and repeatedly yells, "Why are you arresting me?" At 05:04, § 87(2)(b) closes the door with his leg. At 05:12, PO Denton opens the door again and continues struggling with § 87(2)(b). At 5:21, PO Guerrero tells § 87(2)(b) that he is going to the precinct. § 87(2)(b) yells, "I'm not going!" and kicks the door shut again. At 05:33, PO Guerrero opens the door again. At 05:44, PO Guerrero and PO Denton push § 87(2)(b) into rear right passenger seat. VMVS interior camera video (BR08) at 00:00 captures § 87(2)(b) sitting in the rear right passenger seat. Its door is open, and his right leg hangs out of the door. At 00:04, PO Abdelfattah enters the rear left passenger seat. § 87(2)(b) leans forward in the seat, and PO Guerrero holds him by the back of his shirt. PO Abdelfattah's first BWC video (BR04) at 05:50 captures PO Abdelfattah grasping § 87(2)(b) under his left armpit with both hands and pull him into the vehicle. § 87(2)(b) pulls away and scoots to the right, towards the open rear right passenger door. PO Abdelfattah pulls a seatbelt across § 87(2)(b)'s body and buckles it, then exits the vehicle at 06:06. VMVS interior camera video (BR08) at 00:25 captures § 87(2)(b) pressing his right foot on the open rear right passenger door to prevent PO Guerrero from closing it. At 00:32, § 87(2)(b) kicks the door open further with his left foot, then falls back and places his foot inside the car. At 00:38, PO Guerrero closes the door.

PO Denton testified (BR11) that § 87(2)(b) began parking, then stopped, leaving his car sticking out and blocking a lane. PO Abdelfattah ordered § 87(2)(b) to lower the window and turn off the car; § 87(2)(b) did neither, then exited his vehicle. PO Denton believed § 87(2)(b) might have

exited to harm himself, officers, or someone else. The officers told § 87(2)(b) to stop, then approached him. § 87(2)(b) said that he had to pee, argued, moved continuously, and concealed his hands inside his pants' crotch or pockets. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) The officers ordered § 87(2)(b) to show his hands. § 87(2)(b) re-entered his vehicle and reached inside, § 87(2)(b), § 87(2)(g). § 87(2)(b) then exited the vehicle and tried to walk away. The officers told § 87(2)(b) that he was not free to leave and tried to handcuff him. PO Denton did not recall if he handcuffed § 87(2)(b). § 87(2)(b) re-entered his vehicle and reached inside. PO Denton believed § 87(2)(b) might have been trying to flee or grab a weapon. PO Guerrero entered the vehicle with § 87(2)(b) and grabbed his body. § 87(2)(b) tensed and flailed his arms, held onto items inside the vehicle, and did not obey orders. PO Denton tried to pull § 87(2)(b) out of the vehicle by his feet. PO Denton took out his Taser, removed the cartridge, deployed a warning arc, then told § 87(2)(b) "You're going to be Tased." He did this to gain § 87(2)(b)'s voluntary compliance. PO Denton did not recall grabbing § 87(2)(b)'s left arm and twisting it, and did not remember any other officer doing this specific action, but noted that this "had to have happened." PO Denton did not recall pulling § 87(2)(b)'s shirt to remove him from the vehicle, and did not recall seeing any other officer do this. PO Denton initially did not recall if he or other officers took § 87(2)(b) to the ground at any point. After reviewing VMVS dash camera footage, PO Denton stated that the officers took § 87(2)(b) to the ground to prevent him from fleeing on foot, control his hands, and arrest him. Officers used hand strikes against § 87(2)(b) but PO Denton did not recall which officers used hand strikes or where they struck § 87(2)(b). PO Denton did not punch § 87(2)(b) on the upper left side of his face while he was on the ground. PO Denton did not recall officers using foot strikes. PO Denton did not kick § 87(2)(b) while he was falling to the ground or kick him in the head, and did not see another officer do this. PO Denton did not see § 87(2)(b)'s head hit the ground at any time, did not grab the back of § 87(2)(b)'s head and slam it against the ground twice, and did not see another officer do this. Once § 87(2)(b) was handcuffed, the officers tried to lodge § 87(2)(b) in their NYPD vehicle, but he put his foot in the door jamb, he stiffened his body, and he would not get inside the vehicle. PO Denton stood outside the vehicle and pushed § 87(2)(b) to get him inside the vehicle.

PO Guerrero testified (**BR12**) that after officers activated lights and sirens, § 87(2)(b) began parking. PO Guerrero told § 87(2)(b) over the loudspeaker to park and turn the vehicle off. § 87(2)(b) stopped parking, leaving his car at an angle and blocking a lane, which raised PO Guerrero's level of suspicion. § 87(2)(b) turned the car off, did not roll his windows down, and opened his door. The officers approached § 87(2)(b)'s vehicle, and PO Guerrero asked for his ID. § 87(2)(b) tried to close his door, and PO Guerrero pulled it open; he believed § 87(2)(b) tried to close the door to flee the stop. § 87(2)(b) exited the vehicle and stood outside his door. PO Guerrero believed § 87(2)(b) exited to flee the stop. PO Guerrero told § 87(2)(b) to hold on, and § 87(2)(b) said that he had to pee. § 87(2)(b) then put one hand each in his pants' pocket and crotch. PO Guerrero believed he might be reaching for a weapon. PO Guerrero grabbed his arms and said, "Give me your arms." § 87(2)(b) continued holding at least one hand inside his pants. § 87(2)(b) then turned his back to the officers, which hid the front of his body and further indicated that he might have been hiding a weapon. § 87(2)(b) threw his body and elbows at the officers and moved his torso from side to side, then leaned forward and leapt face-first into the vehicle while PO Guerrero was holding his arms, pulling PO Guerrero in with him. PO Guerrero believed § 87(2)(b) re-entered the vehicle to flee and conceal the front of his body. PO Guerrero landed inside the vehicle to § 87(2)(b)'s left, still holding his arms. § 87(2)(b) landed face-down in the vehicle. PO Guerrero tried to get § 87(2)(b)'s left arm, and § 87(2)(b) struck PO Guerrero in the head several times with his right arm. In response, PO Guerrero struck § 87(2)(b)'s upper body with his right hand. Officers pulled PO Guerrero out of the vehicle by the legs, and PO Guerrero pulled § 87(2)(b) out with him.

by pulling his left arm. PO Guerrero did not remember twisting § 87(2)(b)'s arm or ever learning that § 87(2)(b)'s hand was injured. PO Guerrero did not remember pulling § 87(2)(b) out of the vehicle by the back of his shirt and did not see any other officer do this. Outside the vehicle, § 87(2)(b) stood upright and refused to give officers his arms. PO Abdelfattah and PO Denton grabbed § 87(2)(b)'s arms, and PO Guerrero struck § 87(2)(b)'s arm multiple times to gain compliance. A few seconds after the strikes, § 87(2)(b) gave up and voluntarily laid on the ground. PO Guerrero did not use a takedown to bring § 87(2)(b) to the ground and did not see any other officer do so. No officer kicked § 87(2)(b); § 87(2)(b) did not hit his head or become unconscious at any point. PO Guerrero did not see § 87(2)(b)'s head hit the ground accidentally while he fell to the ground. PO Guerrero did not put his hand on § 87(2)(b)'s head and slam it into the ground, did not punch § 87(2)(b) in the upper-left side of his face on the ground, and did not see any other officer do any of this. PO Guerrero did not punch § 87(2)(b)'s body on the ground. § 87(2)(b) resisted arrest on the ground by tensing his body and refusing to give officers his arms. Officers handcuffed him within approximately 30 to 45 seconds.

PO Abdelfattah testified (**BR13**) that after the officers activated their lights and sirens, § 87(2)(b) began parking. PO Guerrero told § 87(2)(b) over the loudspeaker to stop the car, put the car in park, and roll down his windows, and he complied. The officers all approached § 87(2)(b)'s car. § 87(2)(b) refused to provide ID, then opened the door, tried to exit, and said, "I want to pee." PO Guerrero told § 87(2)(b) to get back into the car. § 87(2)(b) was very irate and suddenly put his hands inside his waist and pockets. His demeanor, sudden movement, and hand concealment all suggested that he could be reaching for a concealed weapon. PO Abdelfattah and PO Guerrero tried to control § 87(2)(b)'s hands and remove them from his pockets by grabbing his upper body and arms. § 87(2)(b) struggled with the officers, screamed, yelled, tensed up, kicked, pushed his torso against PO Guerrero, and said, "If you want to take me in, you're going to have to kill me." § 87(2)(b) re-entered his vehicle, and PO Guerrero also entered the vehicle. § 87(2)(b) punched PO Guerrero in the head. His other hand remained in his waist area, grabbing his pockets. PO Guerrero tried to grab § 87(2)(b)'s hands. PO Abdelfattah illuminated the vehicle's interior from outside with his flashlight, tried to pull § 87(2)(b) out of the vehicle by his legs, and held § 87(2)(b)'s leg to prevent him from kicking officers. § 87(2)(b) kicked PO Abdelfattah twice while inside the car. Upon reviewing his BWC footage and the VMVS footage, PO Abdelfattah stated that he did not hit § 87(2)(b)'s leg with the flashlight, but rather hit § 87(2)(b)'s leg with his closed fist while holding the flashlight. PO Abdelfattah and PO Guerrero pulled § 87(2)(b) out of the vehicle. Once outside, § 87(2)(b) continued trying to escape by kicking and moving his arms. PO Abdelfattah grabbed § 87(2)(b)'s legs, PO Guerrero grabbed § 87(2)(b)'s upper body, and the officers brought § 87(2)(b) to the ground slowly; they did not tackle him. PO Abdelfattah did not see PO Guerrero strike § 87(2)(b) before he went to the ground. The officers restrained § 87(2)(b) and handcuffed him. PO Abdelfattah did not punch § 87(2)(b) three to four times in the head on the ground, and did not see any other officer do so. § 87(2)(b)'s head was on the ground due to the position of his body, but the officers never slammed or aggressively pushed his head against the ground. PO Abdelfattah did not kick § 87(2)(b) on the ground and did not remember if any other officer kicked § 87(2)(b). PO Abdelfattah reviewed PO Denton's BWC video from 02:58 to 03:00, which captures a hand striking § 87(2)(b) several times on the back. PO Abdelfattah could not identify whose hand this was.

Officers may use force when it is reasonable to place a person in custody or to prevent escape from custody. Officers' use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject's voluntary compliance, must be prioritized. Officers shall "apply no more than the reasonable force necessary to gain control." Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject; members

of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject's violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence. Patrol Guide Procedure 221-01 (BR14).

An officer should only use a Taser against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or others actually present. When feasible, the officer should issue a verbal warning prior to discharging the Taser, and that such a warning may be used in conjunction with a laser or arc warning in order to gain voluntary compliance and prevent the need to use force. Patrol Guide Procedure 221-08 (BR22)

At the beginning of the stop, § 87(2)(b) continued parking after officers activated their lights and sirens and verbally ordered him to stop over the loudspeaker multiple times. § 87(2)(b) opened his door, then tried to close it when officers approached the vehicle, which was still running and in reverse. § 87(2)(b) refused to provide his driver's license and registration, exited the vehicle, and tried to walk towards the sidewalk. When PO Guerrero stopped § 87(2)(b) by putting his hand against § 87(2)(b)'s chest, § 87(2)(b) put both hands in his pockets, refused to remove them when ordered to do so, and told the officers, "I'm not gonna take them off! You wanna kill me right now? Kill me, right now!" All the officers testified that that these factors suggested that § 87(2)(b) was trying to flee the stop and might have a concealed weapon. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) suddenly re-entered the driver's seat, keeping his hands in his pockets, and PO Guerrero entered with him. Inside, § 87(2)(b) and PO Guerrero both testified that § 87(2)(b) punched PO Guerrero in the head. PO Guerrero punched § 87(2)(b) in response. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

While PO Guerrero was inside the vehicle, PO Abdelfattah grabbed and pulled § 87(2)(b)'s leg to remove him from the vehicle. He later hit his flashlight against § 87(2)(b)'s leg. Meanwhile, PO Denton told § 87(2)(b) "Yo, I'm gonna Tase you!" and deployed a warning arc. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Once § 87(2)(b) was out of the car, the officers all grappled with him. PO Guerrero punched § 87(2)(b) in the head and shoulders four times. § 87(2)(b) went to the ground and continued struggling against the officers. PO Abdelfattah punched § 87(2)(b) in the back twice while he was on the ground. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

PO Denton tried to push § 87(2)(b) into the NYPD vehicle multiple times. PO Guerrero joined PO Denton, and both officers grappled with § 87(2)(b) and shoved him to overcome his resistance and lodge him in the NYPD vehicle. Once § 87(2)(b) is inside the vehicle, PO Guerrero pushes § 87(2)(b) inside, and PO Abdelfattah pulls him into the vehicle from the opposite side of the vehicle. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that an officer put a hand on the back of his head and slammed his head against the ground, rendering him unconscious. The investigation saw no evidence of this in BWC and VMVS footage, and no officer testified to doing so or seeing any other officer do so. § 87(2)(b), § 87(2)(g)

Allegation (G) Discourtesy: At 42 Claver Place in Brooklyn, Police Officer Steven Guerrero spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that while PO Guerrero grabbed his shirt inside the police car, PO Guerrero said, “We’re gonna fuck you up,” then continued cursing at § 87(2)(b). § 87(2)(b) could not remember PO Guerrero’s specific additional curse words or phrases.

Video footage does not capture any officer telling § 87(2)(b) “We’re gonna fuck you up,” or anything similar. PO Denton’s BWC video (**BR02**) at 02:50 captures PO Guerrero saying, “Yo, what the fuck you doing?” as he punches § 87(2)(b) several times in the head and shoulders (see **Allegation A**). PO Abdelfattah’s BWC video at 03:48 captures PO Guerrero and PO Abdelfattah holding § 87(2)(b) against the car after handcuffing him. They press their bodies against him to hold him against the vehicle, and he continues struggling against the officers and yelling that he has to pee. PO Guerrero says to § 87(2)(b) “I was trying to put your hands down, but you started fucking swinging at us.” Both of these remarks are made before officers use force to place § 87(2)(b) into an NYPD vehicle.

PO Guerrero’s, PO Denton’s, and PO Abdelfattah’s § 87(2)(g) They each denied saying, “We’re gonna fuck you up,” or hearing any other officer do so.

The NYPD is committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers must “maintain a higher standard of integrity than is generally expected of others.” Patrol Guide Procedure 200-02 (BR14).

It is not misconduct for a police officer to use profanity while attempting to maintain control of a stressful street encounter, especially after a civilian refuses to comply with a direct order in the presence of other civilians. NYPD Disciplinary Case No. 79627/04 (BR15).

While officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian. DAO-DCT Disciplinary Case No. 2015-15012 (BR23).

Per video footage, neither PO Guerrero nor any other officer said, “We’re gonna fuck you up” to § 87(2)(b). PO Guerrero did say, “Yo, what the fuck you doing,” and, “I was trying to put your hands down but you started fucking swinging at us,” to § 87(2)(b). PO Guerrero said the first statement to § 87(2)(b) while using force against him to overcome his extended and violent attempts to resist arrest, including punching PO Guerrero in the head. PO Guerrero said the second statement to § 87(2)(b) directly after officers handcuffed him, as he continued to struggle with officers and yell. PO Guerrero’s remarks were both uttered in the context of a highly stressful, violent, and potentially dangerous street encounter with a civilian actively attempting to resist arrest.

and exhibiting active aggression. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (H) Abuse of Authority: At 42 Claver Place in Brooklyn, Police Officer Krishawni Denton refused to provide his shield number to § 87(2)(b)

Allegation (I) Abuse of Authority: At 42 Claver Place in Brooklyn, Police Officer Steven Guerrero refused to provide his shield number to § 87(2)(b)

VMVS dash camera video (**BR07**) at runtime 03:07 captures a male and female civilian on the sidewalk approaching the officers, who are grappling with § 87(2)(b) on the ground in the street. The male civilian activates his camera's flashlight and holds up the phone. At 03:30, the officers finish handcuffing § 87(2)(b). At 04:47, the male civilian stands on the sidewalk near the end of § 87(2)(b)'s vehicle. PO Guerrero is located at the front of the NYPD vehicle to its left in the street, and he walks towards the rear of the NYPD vehicle. PO Abdelfattah and PO Denton are not visible. PO Abdelfattah's first BWC video (**BR04**) at 04:36 (19:54:01) captures them standing with § 87(2)(b) next to their NYPD vehicle, between it and the parked car to its right. They have not yet begun lodging § 87(2)(b) in the NYPD vehicle. PO Guerrero walks from the front of the NYPD vehicle to the rear on the street side. In PO Denton's BWC video (**BR02**) at 04:40, and PO Abdelfattah's first BWC video (**BR04**) at 04:36, while the officers are standing outside their police vehicle with § 87(2)(b) a male voice faintly says, "Yo, can I get y'all's badge numbers real quick?" None of the officers respond.

VMVS dash camera video (**BR07**) at 05:01 captures PO Abdelfattah standing directly in front of the civilians in the street while looking for PO Guerrero's BWC with his flashlight. PO Abdelfattah's first BWC video (**BR04**) at 04:50 captures the male civilian saying, "Tell me your badge number." PO Abdelfattah does not answer.

VMVS dash camera video (**BR07**) at 05:23 captures PO Abdelfattah standing directly in front of the male civilian. PO Denton's BWC video (**BR02**) at 05:15 captures PO Denton and PO Guerrero lodging § 87(2)(b) in the NYPD vehicle. PO Abdelfattah's first BWC video (**BR04**) at 05:12 captures the male civilian saying, "You guys not going to tell me your numbers?" PO Abdelfattah says, "Six zero three, Abdelfattah! Move!"

In the beginning of the arrest, PO Guerrero's BWC camera falls onto the ground and lands underneath § 87(2)(b)'s vehicle during this incident but continues recording. PO Guerrero's BWC video (**BR03**) at 05:37 captures the male civilian saying, "You're not trying to give me your numbers? Anyone?" PO Denton's BWC at 05:55 captures the male civilian saying, "You guys want to give me your numbers?" PO Denton and PO Guerrero are lodging § 87(2)(b) in the NYPD vehicle at this point and do not respond.

VMVS dash camera video (**BR07B**) at 06:40 captures PO Guerrero waling up to § 87(2)(b)'s driver's seat. PO Guerrero's BWC camera is still under § 87(2)(b)'s car. PO Abdelfattah closes the door, and PO Guerrero shines his flashlight at the male civilian, then walks up to him and motions for him to move back. The civilian moves onto the sidewalk. PO Guerrero stands in front of him. PO Guerrero's BWC video (**BR03**) at 06:30 captures PO Guerrero saying, "You heard me? You heard me? Over here." The male civilian says, "I got it." PO Guerrero says, "OK, perfect. You didn't know what's going on in here, you just gotta mind your business." At

06:40, PO Guerrero says, “How about you stop asking questions while we're doing police work? You're interfering with our police work.”

PO Denton testified that at an unknown point, a crowd of approximately five to eight people gathered and stood in the street and sidewalk. PO Denton only noticed them after the situation with § 87(2)(b) was under control. PO Denton did not recall if anyone in the crowd requested his shield number, but noted that if he heard them request it, he would have provided it. PO Denton reviewed his BWC video of this incident between 04:34 and 04:57, which captures a civilian in the background say, “Can I get y’all’s badge numbers real quick?” and “Can I get y’all badge numbers?” PO Denton stated that he did not hear these requests at the time of the incident.

PO Guerrero testified that he picked § 87(2)(b) up and saw someone behind him. PO Guerrero turned around and saw a civilian standing in the street near the NYPD vehicle. PO Guerrero did not remember the civilian asking him for his name or shield number at any point, or if he provided this information. PO Guerrero reviewed PO Denton’s BWC video (BR02) from 04:40 to 04:57, which captures a civilian ask the officers, “Can I get y’all’s badge numbers real quick” and “Can I have your badge numbers?” PO Guerrero confirmed that he could hear these statements on video, but he did not hear them during the incident. PO Guerrero did not remember anyone asking him for his shield number, or if he ever gave any civilian his shield number. PO Guerrero reviewed his own BWC video from 06:30 to 06:42, which captures PO Guerrero telling a civilian, “OK, perfect. You didn't know what's going on in here, you just gotta mind your business. How about you stop asking questions while we're doing police work. You're interfering with our police work.” PO Guerrero did not remember what questions he was referring to.

The male civilian’s first requests for shield numbers occurred when PO Denton and PO Abdelfattah stood with a handcuffed § 87(2)(b) at the NYPD vehicle as PO Guerrero walked on the other side of the car. PO Denton and PO Guerrero were lodging § 87(2)(b) in the NYPD vehicle during other requests. All three officers appear to be within earshot of the civilian, but they were occupied with lodging § 87(2)(b) in the police vehicle. PO Denton and PO Guerrero both testified that they did not hear any of these requests at the time of the incident. PO Guerrero testified that he did not know what questions he was referring to when he told the civilian to stop asking questions. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (J) Force: At the PSA 3 stationhouse, Police Officer Mohammad Abdelfattah used physical force against § 87(2)(b)

PO Abdelfattah’s second BWC video (BR05, runtime 06:06-06:17) captures PO Abdelfattah walking § 87(2)(b) away from the desk inside the PSA 3 stationhouse. PO Abdelfattah walks § 87(2)(b) who is handcuffed, towards the cell area. PO Abdelfattah grasps § 87(2)(b) by the right bicep with his left hand. As they reach the cell area door, PO Abdelfattah reaches behind § 87(2)(b) with his right hand and pushes the button to unlock the door. § 87(2)(b) leans forward, pulls against PO Abdelfattah’s grasp, and takes several steps forward, to the right of the cell area door. PO Abdelfattah pulls § 87(2)(b) back to his original position in front of the door. The door unlocks, and PO Abdelfattah places his hands against § 87(2)(b)’s shoulders and pushes him into the cell area. § 87(2)(b)’s body hits the door, then pushes through the door, which swings open. § 87(2)(b) stumbles across the room and regains his balance in front of the cells.

PO Denton's BWC video (**BR02, runtime 25:00 – 25:07**) captures § 87(2)(b) taking approximately three steps away from PO Abdelfattah outside the door.

§ 87(2)(b) did not testify that PO Abdelfattah pushed him into the cell area.

PO Abdelfattah testified that he did not use force against § 87(2)(b) in the cell area and did not intentionally push § 87(2)(b) in the cells area. § 87(2)(b) tried to escape while officers were bringing him through the cell area door, and PO Abdelfattah "grabbed him back." Due to § 87(2)(b)'s momentum, he tumbled forward into the room when PO Abdelfattah "grabbed" him to prevent his escape.

After reviewing his BWC footage of this moment, PO Abdelfattah stated that when he, § 87(2)(b) PO Denton, and PO Guerrero reached the cell area doorway, § 87(2)(b) began charging towards the back area of the stationhouse. The officers dragged § 87(2)(b) back. He reiterated that he did not push § 87(2)(b) PO Abdelfattah grabbed § 87(2)(b) from behind and pulled him back. § 87(2)(b)'s body momentum countered PO Abdelfattah's body momentum, and § 87(2)(b) tripped. § 87(2)(b) "seemed" like he got pushed, but his movement was actually due to the momentum of his own body propelling him forward.

Officers may use force when it is reasonable to place a person in custody or to prevent escape from custody. Officers' use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject's voluntary compliance, must be prioritized. Officers shall "apply no more than the reasonable force necessary to gain control." Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject; members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject's violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence. Patrol Guide Procedure 221-01 (BR14).

As the officers escorted § 87(2)(b) toward the cell area, up to the moment that they reached the door, § 87(2)(b) tried to pull away from PO Abdelfattah's grasp. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in eleven allegations (**BR19**):
 - § 87(2)(b)
 - § 87(2)(b)
- PO Krishawni Denton has been a member of service for four years and has been a subject in 13 CCRB complaints and 34 allegations, of which two were substantiated:

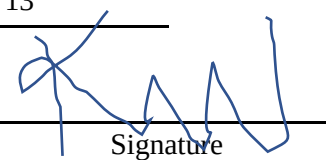
- **202206864** involved substantiated allegations of abuse of authority – refusal to provide name and abuse of authority – refusal to provide shield number against PO Denton. The Board recommended Command Discipline A and the NYPD imposed no penalty.
- § 87(2)(g)
- PO Mohammad Abdelfattah has been a member of service for five years and has been a subject in 14 CCRB complaints and 71 allegations, of which four were substantiated:
 - **202103607** involved substantiated allegations of abuse of authority – strip search and discourtesy – word against PO Abdelfattah. The Board recommended charges, and PO Abdelfattah was found not guilty in an APU trial.
 - **202107869** involved substantiated two allegations of discourtesy – word against PO Abdelfattah. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g)
- PO Stephen Guerrero has been a member of service for five years and has been a subject in 11 CCRB complaints and 29 allegations, none of which were substantiated. § 87(2)(g)
- PO Keith Meisner has been a member of service for 6 years and has been a subject in 5 CCRB complaints and 23 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 3, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.:	13		
Investigator:		INV Katherine White	11/02/2023
	Signature	Print Title & Name	Date
Squad Leader:	JP Lozada	IM Jean-Paul Lozada	11/03/2023
	Signature	Print Title & Name	Date
Reviewer:			

Signature

Print Title & Name

Date